



Elim Church Moor Lane Bolton Burial Ground Act 1964

CHAPTER xv

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ELIZABETH II



1964 CHAPTER xv

An Act to authorise the removal of the restrictions attaching to the burial ground forming part of the site of the former church known as the Elim Church situate at Moor Lane, in the borough of Bolton, to authorise the use of the said burial ground for building purposes or otherwise; and for other purposes. [10th June 1964]

WHEREAS—

(1) The burial ground forming part of the site of the former church known as the Elim Church situate at Moor Lane, in the borough of Bolton, is a disused burial ground within the meaning of the Disused Burial Grounds Act, 1884 (hereinafter referred to as “the burial ground”):

(2) By an assignment dated the 25th May, 1962, and made between Harry Mason & Sons Limited (to whom the said church including the burial ground (hereinafter referred to as “the said property”) had been duly assigned) of the one part and W. Knowles & Sons (Transport) Limited (hereinafter referred to as “the Company”) of the other part the said property was assigned to

the Company for all the residue then unexpired of the term of 990 years computed from the date of and granted by a lease dated the 13th November, 1826:

(3) The local planning authority have granted permission for the development of the said property and all human remains formerly interred in the burial ground have been removed therefrom in pursuance of a licence granted by the Secretary of State by virtue of section 25 of the Burial Act, 1857, and dated the 11th December, 1963:

(4) It is expedient that the burial ground should be freed from all restrictions which may affect the same by reason of the burial ground or any part thereof being a disused burial ground and that the Company and their successors in title be empowered to use, deal with or dispose of the burial ground or any part thereof for building or for any other purposes whatsoever freed from all restrictions as aforesaid:

(5) It is expedient that the other provisions contained in this Act should be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the Elim Church Moor Lane Bolton Burial Ground Act 1964.

Interpretation. 2.—(1) In this Act, unless the subject or context otherwise requires—

“ the burial ground ” means the burial ground forming part of the site of the former church known as the Elim Church situate at Moor Lane, in the borough of Bolton, and described in the schedule to this Act;

“ the Company ” means W. Knowles & Sons (Transport) Limited;

“ enactment ” has the same meaning as in the Town and Country Planning Act, 1962.

(2) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by any subsequent enactment.

3. As from the passing of this Act, the burial ground shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing thereof attached to the burial ground, by reason of the burial ground being a disused burial ground, and from all rights and interests of any person who is a personal representative or relative of any deceased person whose remains have been interred in the burial ground and the provisions of the Disused Burial Grounds Act, 1884, shall cease to apply to the burial ground.

Discharge of trusts and restrictions affecting burial ground.

4. Notwithstanding anything contained in any enactment, but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the burial ground or any part thereof for building or for any other purpose in like manner as if no part thereof had ever been used or set apart for the purpose of burial of human remains.

Power to use burial ground for building or other purposes.

5. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act.

Saving for town and country planning.

6. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be defrayed out of revenue.

Costs of Act.

SCHEDULE

DESCRIPTION OF BURIAL GROUND

A piece of land in the borough of Bolton containing 3,136 square feet or thereabouts at the junction of Moor Lane and Gas Street bounded—

- (1) on the east by the west side of Moor Lane from the said junction to a point 56 feet or thereabouts to the north thereof;
- (2) on the south by the north side of Gas Street from the said junction to a point 56 feet or thereabouts to the west thereof;
- (3) on the west by an imaginary straight line commencing at the point referred to in paragraph (2) hereof proceeding in a northerly direction to and terminating at a point 56 feet or thereabouts to the north thereof and 56 feet or thereabouts westward from the point referred to in paragraph (1) hereof;
- (4) on the north by an imaginary straight line commencing at the termination of the imaginary line referred to in paragraph (3) hereof proceeding in an easterly direction to and terminating at the point referred to in paragraph (1) hereof.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Burial Act, 1857	20 & 21 Vict. c. 81.
Disused Burial Grounds Act, 1884	47 & 48 Vict. c. 72.
Town and Country Planning Act, 1962	10 & 11 Eliz. 2 c. 38.

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